

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

[ASHIS KUMAR NATH VS. VM WARE SOFTWARE]

30.01.2025

(VIDEO CONFERENCING / PHYSICAL HEARING)

CORAM: HON'BLE MRS JUSTICE ANU SIVARAMAN

and

HON'BLE MR JUSTICE VIJAYKUMAR A. PATIL

ORAL ORDER

(PER: HON'BLE MRS JUSTICE ANU SIVARAMAN)

We have heard the learned counsel appearing on either side.

2. It is contended by the learned senior counsel appearing for the respondent that the question whether a writ appeal is at all maintainable from an order passed by the learned Single Judge under Article 227 of the Constitution of India requires a consideration. It is submitted that a seven Judge Bench of this Court in ***Tammanna and Others v. Miss Renuka and Others*** reported in ***ILR 2009 KAR 1207*** has considered the question whether a writ appeal would be maintainable against an order passed by the learned Single Judge exercising jurisdiction under Article 227 of the Constitution of India. Having considered the provisions of law and the case law on the point, it was held, per

majority, that no appeal would lie under Section 4 of the Karnataka High Court Act, 1961 ('Act for short') against an order of the learned Single Judge passed in exercise of the power conferred under Article 227 of the Constitution of India against an order made deciding an issue, passed by the Court subordinate to the High Court, in the course of a suit or other proceeding not finally disposed of, which is attracted by Section 115 of CPC and is governed under Section 8 of the Karnataka High Court Act, 1961 and in all other matters which are not attracted by Section 115 of CPC and not governed under Section 8 of the Act, an appeal would lie under Section 10(iv-a) against the order passed under Section 9(xii) of the Karnataka High Court Act read with Articles 226 and 227 of the Constitution of India.

3. It is further submitted that in the instant case, the question which arises for consideration is whether an appeal would lie against an award passed by the Labour Court under the provisions of the Industrial Disputes Act, 1947. It is further submitted that inspite of the opinion expressed by the larger Bench with regard to maintainability of an appeal, even against orders passed under Article 227 of the Constitution of India in terms of Section 10(iv-a) of the Karnataka High Court Act,

there are several Bench decisions of this Court holding that challenge to an order passed under Articles 226 and 227 of the Constitution of India would not be maintainable. It is submitted that in such circumstances, appeals filed against judgments passed by Learned Single Judges are being rejected on the ground that they are not maintainable. It is submitted that there is serious conflict of opinion with regard to maintainability of appeals and a list of such Bench decisions taking conflicting views on the maintainability of appeals from orders passed by the learned Single Judge in challenges raised under Article 227 of the Constitution of India are also placed before us which reads as under:

Sl.No.	Date of Judgment	Citation	Remarks	Page No.
1	29 June 2022	Management of Bharat Fritz Werner Limited v. Bharat Fritz Werner Karmika Sangha, W.A.No.497 of 2022	Dismissed on maintainability	1-13
2	11 July 2022	Management of Bharat Fritz Werner Limited v. Bharat Fritz Werner Karmika Sangha, SLP No.12658/2022	Pending	14-16

3	1 August 2022	M/s. Bosch Ltd. V. Labour through Karnataka Rakshak and General Works, WA 399 of 2019	Not dismissed on maintainability	17-26
4	21 October 2022	Bangalore Metropolitan Transport Corporation, South Division v. Manikantan, WA No.377 of 2022 (L-KSRTC)	Not dismissed on maintainability	27-30
5	9 November 2022	Bangalore Metropolitan Transport Corporation Volvo Division v. Veena B.M. WA No.387 of 2022 (L-KSRTC)	Not dismissed on maintainability	31-42
6	16 November 2022	M/s. Veebros Freight Carrier v. N.S. Chaluvvaraj, WA No.595 of 2022 (L-TER)	Not dismissed on maintainability	43-48
7	30 November 2022	T. Nagaraju v. The Divisional Controller and Appointing Authority, KSRTC, WA No.1039 of 2022 (L-KSRTC)	Not dismissed on maintainability	49-58
8	23 January 2023	The Divisional Controller KSRTC v. H.K. Savithramma, WA No.446 of 2022 (L-KSRTC)	Not dismissed on maintainability	59-67
9	23 February	N. Sarojamma v.	Not dismissed	68-

	2023	The Divisional Controller KSRTC Bangalore Central Division, WA No.112 of 2023	on maintainability	75
10	10 April 2023	The Management of Karnataka Urban Water V. K. Chalapathi and Ors., WA 100193 of 2023 (L-RES)	Dismissed on maintainability	76-77
11	10 April 2023	Karnataka Urban Water Supply and Drainage Board v. Karnataka Urban Water Supply and Drainage Contract Employees and Ors., WA 100189 of 2023 (L-RES)	Dismissed on maintainability	78-79
12	11 April 2023	Sri. Shivaputrappa v. The South Management of Sports Authority of India, WA No.100227 of 2023 (L-RES)	Dismissed on maintainability	80-82
13	12 April 2023	Sangappa v. The Management of KSRTC, WA No.100447 of 2022 (L-KSRTC)	Dismissed on maintainability	83-84
14	12 April 2023	City Municipal Council Ilkal v. Mahantesh and Ors., WA No.100230 of 2023	Dismissed on maintainability	85-87
15	15 March 2024	City Municipal Council Ilkal v.	SC sees no infirmity with	88

		Mahantesh and Ors., SLP (Civil) Diary No.32290 of 2023	the view to dismissed on maintainability	
16	11 July 2024	The Divisional Controller NEKRTC v. Babusingh, WA No.200158 of 2024 (L-KSRTC)	Dismissed on maintainability	89-91
17	15 July 2024	The Divisional Controller of NWKRTC v. Mahantesh, WP No.100224 of 2023	Dismissed on maintainability	92-96
18	16 July 2024	The Divisional Controller NEKRTC v. Bande Ali, WA No.200156 of 2024 (L-KSRTC)	Dismissed on maintainability	97-99
19	19 July 2024	Karnataka Neeravari Nigam and Ors v. The Assistant Executive Engineer, WA No.200170 of 2023 (L-RES)	Dismissed on maintainability	100-107
20	11 July 2024	The Divisional Controller, NEKRTC v. Malleshi, WA No.200142 of 2024 (L-KSRTC)	Dismissed on maintainability	108-110
21	13 November 2024	The Management of NWKRTC v. Shri. Mohammad Jafar, WA No.100321 of 2024	Dismissed on maintainability	111-130
22	15 November	The Division Controller,	Dismissed on	131-

	2024	NWKRTC Chikkodi Division v. Umesh Muralidhar Mohite, WA No.100352 of 2024	maintainability	132
--	------	---	-----------------	-----

4. We notice that it is on account of the judgment of a Division Bench of this Court in ***Management of Bharat Fritz Werner Ltd. Bangalore v. Bharat Fritz Werner Karmika Sangha Bangalore*** reported in ***AIR Online 2022 KAR 4396***, that the appeals are being dismissed on the ground of maintainability. The Division Bench of this Court in ***Management of Bharat Fritz Werner Ltd's*** case (supra), has considered the judgments of the Apex Court as well as the other co-equal Benches and had held that the Writ Petition having been preferred under Articles 226 and 227 of the Constitution of India challenging the award passed by the Labour Court, Bangalore, the appeal against the order of the learned Single Judge which is an intra-court appeal is not maintainable. The said view was taken in the light of the Apex Court in ***Radhey Shyam and another v. Chhabi Nath and others*** reported in AIR ***2015 SC 3269***, ***Caparo Engineering India Ltd. v. Ummed Singh Lodhi and Another*** reported in ***(2021) SCC Online SC 973*** and ***Kiran Devi v. Bihar State***

Sunni Wakf Board and Others reported in **(2021) 15 SCC 15**. However, we notice that the specific provisions of Section 9(xii) and Section 10(iva) of the Karnataka High Court Act have not been considered in ***Management of Bharat Fritz Werner Ltd's*** case (supra). We are of the opinion that Division bench in ***Management of Bharat Fritz Werner Ltd's*** case (supra) has not considered the effect of the specific provisions of the Karnataka High Court Act. However, since the judgment in ***Management of Bharat Fritz Werner Ltd's*** case (supra) is of a co-equal Bench, we are of the opinion that the question requires to be placed before a three Judge bench for consideration.

5. We notice that the judgment of the larger Bench in ***Tammanna and Others v. Miss Renuka and Others*** was specifically on the question whether an appeal would lie from an order passed by the learned Single Judge under the provisions of Article 227 of the Constitution of India in respect of matters where revision had been provided under Section 115 of CPC. The opinion expressed by the larger Bench was specifically as under:

"14. As a result no appeal would lie under Section 4 of the Karnataka High Court Act against the order of

the Single Judge passed in exercise of the power conferred under Article 227 of the Constitution of India in the matter arising against an order made deciding an issue, passed by the Court subordinate to the High Court, in the course of a suit or other proceedings not finally disposed of, which is attracted by Section 115 CPC and is governed under Section 8 of the Karnataka High Court Act; and in all others matters which are not attracted by Section 115 CPC and not governed under Section 8 of the Act, an appeal would lie under Section 10(iv-a) against the order passed under Section 9(xii) of the Karnataka High Court Act read with Article 226 and 227 of the Constitution of India and Rules 2(1), 26 and 39 of the Writ Proceedings Rules as well as Article 11(sa) to Schedule II to the Karnataka Court Fees and Suits Valuation Act, 1958?"

6. In the light of the clear opinion expressed by the larger bench, we are of the opinion that the finding of the co-equal Bench in **Management of Bharat Fritz Werner Ltd's** case (supra), that a writ appeal would not lie against the judgment of the learned Single Judge where the challenge in the writ petition is against a Labour Court award is not the correct view. We are further of the view that where the power exercised by the learned Single Judge is under Article 226 of the Constitution of India, an appeal would be maintainable in terms of Section 4 of the Karnataka High Court Act.

7. We have also perused the judgment of the co-equal Bench dated 27.08.2024 in WA.No.100006/2022, which are placed for our consideration, where appeals from orders passed

by the learned Single judge exercising jurisdiction under Article 227 of the Constitution of India have been held to be maintainable. We notice that Section 7 of the Karnataka High Court Act provides that where there is a conflict of opinion between two Co-ordinate Benches of the High Court, the question requires to be considered by a larger bench. In view of the judgments which have been placed for our consideration as stated earlier, we are of the opinion that the question whether an appeal would be maintainable against a judgment of a learned Single Judge in a writ petition filed under Article 227 of the Constitution of India requires to be clarified to prevent any further conflict of opinion on the point.

8. We therefore refer the question whether an appeal would be maintainable against a judgment of a learned Single Judge of this Court exercising jurisdiction under Article 227 of the Constitution of India for consideration of a Full Bench of this Court.

9. The Registry shall place the file before Hon'ble The Chief Justice of this Court for obtaining orders and for constituting a Bench to consider the question.

(ANU SIVARAMAN)
JUDGE

(VIJAYKUMAR A. PATIL)
JUDGE

ABK
List No.: 1 SI No.: 9